

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

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BALDEMIRO LOPEZ,

Plaintiff,

SUMMONS

Index No.:

-against-

The Basis of Venue is:

POLICE OFFICER MARKEITH CATLIN, Shield No.
7111,

Location of Incident

Defendant.

Plaintiff designates New York
County as the place of trial.

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To the above named Defendants:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
April 26, 2017

Yours, etc.

/s/

JACOBS & HAZAN, LLP.
STUART E. JACOBS, ESQ.
Attorney for Plaintiff
30 Vesey Street, 4th Floor
New York, New York 10007
(212) 577-2690

TO: POLICE OFFICER MARKEITH CATLIN, Shield No. 7111, 32nd Precinct, 250 West
135th Street, New York, NY, 10030-2802

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

----- X
BALDEMIRO LOPEZ,

Plaintiff,

INDEX NO.:

VERIFIED COMPLAINT

-against-

POLICE OFFICER MARKEITH CATLIN, Shield No.
7111,

JURY TRIAL DEMANDED

Defendant.
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Plaintiff, BALDEMIRO LOPEZ, by his attorneys, Jacobs & Hazan, LLP, as and for his Verified Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Section 1983, and of rights secured by the Fourth, Fifth, and Fourteenth Amendments to the United States Constitution, and the common law and the laws of the State of New York. On April 29, 2014, at approximately 11:00 p.m., plaintiff, Baldemiro Lopez, while lawfully inside of his apartment, located at 2855 8th Avenue, Apt. 5I, New York, New York, was subject to an unlawful seizure, search, detention, false arrest, false imprisonment, malicious prosecution, and use of excessive force by the individually named defendant police officer. Plaintiff was denied the right to due process and the right to a fair trial in violation of the Fifth and Fourteenth Amendments to the United States Constitution when the defendant police officers provided the Bronx County District Attorney's Office with falsified, incomplete and misleading evidence when the defendants provided the DA's Office with the facts that gave rise to the arrest. Plaintiff was deprived of his constitutional and common law rights when the individual defendants unlawfully seized, searched, detained, falsely arrested, falsely imprisoned, used excessive force against plaintiff and denied plaintiff a right to a fair trial in violation of the Fourth, Fifth and Fourteenth Amendments to the United States Constitution and the common law of the state of New York.

PARTIES

2. Plaintiff Baldemiro Lopez is a resident of the State of New York.

3. Defendant POLICE OFFICER MARKEITH CATLIN, Shield No. 7111, is and was at all time relevant herein an officer, employee, and agent of the New York City Police Department.

4. Defendant POLICE OFFICER MARKEITH CATLIN, Shield No. 7111, is and was at all relevant times herein assigned to the 32nd Precinct.

5. Defendant POLICE OFFICER MARKEITH CATLIN, Shield No. 7111 is being sued in his individual and official capacity.

6. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.

7. At all times relevant hereto, defendant CITY OF NEW YORK, operated, maintained managed, supervised and controlled the New York City Police Department ("NYPD") as part of and in conjunction with its municipal function.

8. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

9. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

10. Plaintiff sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

11. On April 29, 2014, at approximately 11:00 p.m., plaintiff was lawfully inside of his apartment located at 2855 8th Avenue, Apt. 5I, New York, New York.

12. The defendant police officers arrived at plaintiff's apartment and knocked on the door.

13. Plaintiff's girlfriend opened the door and asked the defendant police officers why they were knocking on the door.

14. The defendant police officers asked plaintiff's girlfriend if she had been assaulted by plaintiff and she told the police officers that she had not been assaulted by plaintiff.

15. Notably, plaintiff's girlfriend did not have any visible physical injuries and told the defendant police officers that plaintiff had not assaulted her in any way.

16. Nevertheless, the defendant police officers grabbed plaintiff aggressively and forcibly handcuffed plaintiff causing him to suffer serious physical injuries to his neck and lower back.

17. Plaintiff, who had previously been a shooting victim, explained to the police officers that he used a cane to walk and that he is not able to move very well.

18. However, the defendant police officers ignored plaintiff and did not let him take his cane, and instead roughly handcuffed plaintiff and caused him to suffer pain to his neck and back.

19. At no point in time did plaintiff resist arrest in any way.

20. At no time did the defendant police officers find any guns, drugs, or illegal contraband inside the apartment or in plaintiff's possession, custody or control.

21. Defendants did not have an objective factual basis to believe plaintiff committed a crime or violated the law in any way.

22. Based upon the objective facts known to the police officers, the police officers lacked any objective basis to reasonably believe plaintiff committed any crime, broke any law, or assaulted plaintiff's girlfriend.

23. Thereafter, plaintiff was transported to the 32nd precinct.

24. As soon as plaintiff arrived at the 32nd precinct, plaintiff requested medical attention for the injuries caused by the defendant police officers, however the defendant police officers denied him medical treatment.

25. As a result of the failure to provide plaintiff timely medical treatment, the injuries to his neck and back were exacerbated and made worse.

26. Notably, in order to cover up the fact that the defendant police officers did not provide plaintiff with medical treatment, the defendant police officers falsified a medical treatment of prisoner form.

27. Specifically, defendant police officer Catlin filled out a Medical Treatment of Prisoner Form indicating that plaintiff complained of lower back pain and was allegedly taken to Harlem Hospital.

28. However, at no point in time was plaintiff actually provided with medical treatment, nor did plaintiff ever receive medical treatment at Harlem Hospital for his injuries inflicted by the defendant police officers.

29. While plaintiff was at the 32nd precinct, the defendant police officers falsely stated to the New York District Attorney's Office that plaintiff had assaulted his girlfriend.

30. Specifically, the defendant police officers failed to communicate to the New York County District Attorney's Office that plaintiff's girlfriend told the police officers that she had not been assaulted by plaintiff.

31. On April 30, 2014, at approximately 8:00 a.m., plaintiff was transported to Bronx Central Booking.

32. On April 30, 2014, at approximately 11:00 p.m., after approximately 24 hours in police custody, plaintiff was arraigned in Manhattan Criminal Court and bail was set by the Judge.

33. Plaintiff was unable to post bail and was remanded to the custody of the Department of Correction and taken to the Manhattan Detention Center.

34. Plaintiff was in custody for an additional 5 days at the Manhattan Detention Center, before he was finally released from custody on or about May 4, 2014.

35. Plaintiff was forced to appear in Court on approximately 2 occasions before all charges were dismissed on August 4, 2014.

36. Some of the police officer defendants observed the violation of plaintiff's rights under the Constitution of the United States and New York State Law and did nothing to prevent the unjustifiable entry and search of plaintiff's apartment, or the unjustifiable seizure, search, false arrest, false imprisonment, malicious prosecution, excessive force and denial of a fair trial.

37. The unlawful seizure, search, false arrest, false imprisonment, use of excessive force, malicious prosecution, and denial of the right to a fair trial of plaintiff by the individually named defendants caused plaintiff to sustain serious physical, psychological and emotional trauma.

FIRST CAUSE OF ACTION

Violation of Plaintiff's Fourth Amendment and Fourteenth Amendment Rights

38. The plaintiffs repeat, reiterate and reallege each and every allegation contained in paragraphs marked 1 through 37 with the same force and effect as if more fully set forth at length herein.

39. The individually named police officer defendants while acting in concert and within the scope of their authority, caused plaintiff to be unlawfully seized, falsely arrested and imprisoned, maliciously prosecuted, and denied plaintiff the right to a fair trial, without probable cause in violation of plaintiff's right to be free of an unreasonable seizure under the Fourth Amendment of the Constitution of the United States and in violation of plaintiff's right to due process under the Fifth Amendment to the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

SECOND CAUSE OF ACTION

False Arrest and False Imprisonment

40. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 39 with the same force and effect as if more fully set forth at length herein.

41. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine plaintiff and, in fact, confined plaintiff, and plaintiff was conscious of the confinement. In addition, plaintiff did not consent to the confinement and the confinement was not otherwise privileged.

42. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

43. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

THIRD CAUSE OF ACTION

Denial of Right to Fair Trial

44. The plaintiffs repeat, reiterate and reallege each and every allegation contained in paragraphs marked 1 through 43 with the same force and effect as if more fully set forth at length herein.

45. Defendants, individually and collectively, manufactured and/or withheld false evidence and forwarded this false evidence to prosecutors in the New York County District Attorney's Office.

46. Defendants filled out false and misleading police reports and forwarded them to prosecutors in the New York County District Attorney's Office.

47. Defendants signed false and misleading criminal court affidavits and forwarded them to prosecutors in the New York County District Attorney's Office.

48. In withholding/creating false evidence against plaintiff Baldemiro Lopez and in providing/withholding information with respect thereto, defendants violated plaintiff's constitutional right to a fair trial under the New York State Constitution and under the Due Process Clause of the Fifth and Fourteenth Amendments of the United States Constitution.

49. As a result of the foregoing, plaintiff Baldemiro Lopez, sustained, inter alia, loss of liberty, emotional distress, embarrassment and humiliation, lost earnings and deprivation of his constitutional rights.

50. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

51. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

FOURTH CAUSE OF ACTION

Violation of Plaintiff's Fourth And Fourteenth Amendment Rights

52. The plaintiffs repeat, reiterate and reallege each and every allegation contained in paragraphs marked 1 through 51 with the same force and effect as if more fully set forth at length herein.

53. The use of excessive force by defendants in forcibly handcuffing plaintiff excessively tight and roughly assaulting him while arresting him caused severe physical injury, was an objectively unreasonable physical seizure of plaintiff in violation of his rights under the Fourth and Fourteenth Amendments to the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

54. The individually named police officer defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

FIFTH CAUSE OF ACTION**Deliberate Indifference to Medical Needs- Violation of the Fourteenth Amendment**

55. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 54 with the same force and effect as if more fully set forth at length herein.

56. Defendants, despite being aware that plaintiff was seriously injured delayed plaintiff's medical treatment and refused to administer, and properly procure, immediate and adequate medical attention.

57. The delay in medical treatment to plaintiff's injuries resulted in further damage to plaintiff's heart that would have been prevented if plaintiff was treated in a timely manner.

58. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York and the Fourteenth Amendment to the United States Constitution.

59. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

SIXTH CAUSE OF ACTION**Malicious Prosecution**

60. Plaintiff repeats and realleges paragraphs 1 through 59 as if fully set forth herein.

61. The acts and conduct of the defendants constitute malicious prosecution under the laws of the United States Constitution, State of New York and New York State common law.

62. Defendants commenced and continued a criminal proceeding against plaintiff.

63. There was actual malice and an absence of probable cause for the criminal proceeding against plaintiff and for each of the charges for which he was prosecuted.

64. The prosecution and criminal proceedings terminated in plaintiffs' favor on the aforementioned dates.

65. Plaintiff was subjected to a post-arraignment deprivation of liberty sufficient to implicate plaintiff's Fourth Amendment rights.

66. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the United States Constitution and laws of the State of New York.

67. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

SEVENTH CAUSE OF ACTION

Failure to Intervene

68. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 67 with the same force and effect as if more fully set forth at length herein.

69. Defendants had an affirmative duty to intervene on behalf of plaintiff, whose constitutional rights were being violated in their presence by other officers.

70. Defendants failed to intervene to prevent the unlawful conduct described herein.

71. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, he was put in fear of his safety, and he was humiliated and subject to other physical constraints.

72. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

73. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

JURY DEMAND

74. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

WHEREFORE, plaintiff Baldemiro Lopez demands judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorney's fees inclusive of costs and disbursements of this action, interest and such other relief as is appropriate under the law. That the plaintiff recover the cost of the suit herein, including reasonable attorneys fees pursuant to 42 U.S.C. § 1988.

Dated: New York, New York
April 26, 2017

By: /s/
STUART E. JACOBS
DAVID M. HAZAN
JACOBS & HAZAN, LLP
Attorneys for Plaintiff
30 Vesey Street, 4th Floor
New York, NY 10007
(212) 577-2690

TO: POLICE OFFICER MARKEITH CATLIN, Shield No. 7111, 32nd Precinct, 250 West
135th Street, New York, NY, 10030-2802

ATTORNEY'S VERIFICATION

STUART E. JACOBS, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a partner of the law firm of **JACOBS & HAZAN, LLP**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiff is that Plaintiff does not reside in the county wherein I maintain my office.

DATED: New York, New York
April 26, 2017

_____/s/_____
STUART E. JACOBS